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|    |                                                                                                  | <p>regard to the existence of any private agreement to arbitrate.”]; <i>Garrido v. Air Liquide Indus. U.S. LP</i> (2015) 241 Cal. App. 4th 833, 844–45 [“The FAA preempts Labor Code section 229, requiring enforcement of an arbitration agreement covering [actions for the collection of due and unpaid wages].”).]</p> <p>Both the Federal Arbitration Act and California law provide for a stay of proceedings pending arbitration. (9 U.S.C. §3; CCP §1281.4.) As such, the court stays the action pending completion of arbitration.</p> <p>The court sets an ADR review hearing for April 8, 2027 at 9:00 a.m.</p> <p>Defendants are ordered to give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 11 | 30-2025-01513896<br>Vaughn vs.<br>American<br>Woodmark<br>Corporation, a<br>Virginia corporation | <b>Off Calendar</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 12 | 30-2022-01240591<br>Boucher vs.<br>Unstoppable<br>Automotive Group,<br>LLC                       | <p><b><u>MOTION 1: Plaintiff’s Motion to Compel Further Responses to RFP, Set One, from UA POC</u></b></p> <p>Plaintiff Louis Baird Boucher’s (“Plaintiff”) Motion to Compel Further Responses to Requests for Production of Documents (“RFP”), Set One from Defendant Unstoppable Automotive POC, LLC (“UA POC”) is <b>GRANTED IN PART</b> as to RFP Nos. 1-6 and <b>DENIED WITHOUT PREJUDICE IN PART</b> as to RFP Nos. 7-9. IT IS ORDERED THAT within thirty (30) days of this ruling, UA POC shall provide to Plaintiff complete, code-compliant further responses to Plaintiff’s RFP Nos. 1-6 (as modified in the ruling below), provide a privilege log to Plaintiff for any documents withheld on the basis of privilege, and produce all non-privileged, responsive documents to Plaintiff.</p> <p>The court OVERRULES UA POC’s objections to Plaintiffs’ counsel, Hali M. Anderson’s declaration.</p> <p>The subject discovery concerns Plaintiff’s wage and hour law violation claims underlying the single PAGA cause of action asserted against Defendants in this action. Plaintiff seeks documents related to his own employment records, and all documents related to UA POC’s compensation plans, employee handbooks and HR manuals, timekeeping, compensation and</p> |

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|  | <p>payroll policies, as well as all time records, payroll records, and wage statements during the relevant PAGA Period. However, Plaintiff and UA POC currently dispute whether UA POC employed Plaintiff and thus, whether UA POC could be subject to PAGA penalties in this action. UA POC asserts that Plaintiff was employed solely by Unstoppable Automotive AMV, LLC (“UA AMV”), not UA POC. UA POC objects to the subject discovery entirely based on various grounds, but primarily on the grounds that it was not Plaintiff’s employer.</p> <p>“Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (CCP § 2017.010.)</p> <p>“In the absence of privilege, the right to discovery in this state is a broad one, to be construed liberally so that parties may ascertain the strength of their case and at trial the truth may be determined.” (<i>Williams v. Superior Ct.</i> (2017) 3 Cal. 5th 531, 538.) “That the eventual proper scope of a putative representative action is as yet uncertain is no obstacle to discovery; a party may proceed with interrogatories and other discovery methods precisely in order to ascertain that scope.” (<i>Id.</i> at 551.) “Doubts as to whether particular matters will aid in a party’s preparation for trial should generally be resolved in favor of permitting discovery; this is especially true when the precise issues of the litigation or the governing legal standards are not clearly established.” (<i>Id.</i>)</p> <p>A motion for an order compelling further response must include “specific facts showing good cause justifying the discovery sought by the demand.” (CCP § 2031.310(b)(1).) Here, Plaintiff has demonstrated good cause for discovery of documents and information that relate to the question of whether UA POC was Plaintiff’s employer.</p> <p>Every court shall have the power “[t]o provide for the orderly conduct of proceedings before it.” (CCP § 128(a).) With respect to electronically stored information, the court may limit discovery if “[t]he likely burden or expense of the proposed discovery outweighs the likely benefit, taking into account the amount in controversy, the resources of the parties, the importance of the issues in the litigation, and the importance of the requested</p> |
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|  | <p>discovery in resolving the issues.” (CCP § 2031.310(g)(4).) “The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” (CCP § 2017.020(a).)</p> <p>The court finds that whether UA POC was Plaintiff’s employer is a threshold issue that should be decided before more intrusive, burdensome discovery is warranted. Not all of Plaintiff’s discovery requests relate to the issue of the employment relationship. In fact, some of the subject document requests must be narrowed, as the broad language used by Plaintiff reaches far beyond the question of the employment relationship. In addition, further responses to RFP Nos. 7-9 are not yet warranted. The current dispute over the employment relationship renders such broad, intrusive discovery relating to employees that may not be included in the PAGA claim premature.</p> <p>To demonstrate UA POC is Plaintiff’s employer, Plaintiff must show that UA POC “exercised control over his wages, hours or working conditions; <i>or</i> (b) allowed him to suffer work or permitted him to work; <i>or</i> (c) engaged him, creating a common law employment relationship.” ((<i>Futrell v. Payday California, Inc.</i> (2010) 190 Cal. App. 4th 1419, 1429.)</p> <p>The common and prevailing principle espoused in all of the [employment] tests directs us to consider the ‘totality of circumstances’ that reflect upon the nature of the work relationship of the parties, with emphasis upon the extent to which the defendant controls the plaintiff’s performance of employment duties.” (<i>St. Myers v. Dignity Health</i> (2019) 44 Cal. App. 5th 301, 311.) “Factors to be taken into account in assessing the relationship of the parties include payment of salary or other employment benefits and Social Security taxes, the ownership of the equipment necessary to performance of the job, the location where the work is performed, the obligation of the defendant to train the employee, the authority of the defendant to hire, transfer, promote, discipline or discharge the employee, the authority to establish work schedules and assignments, the defendant’s discretion to determine the amount of compensation earned by the employee, the skill required of the work performed and the extent to which it is done under the direction of a supervisor, whether the work is part of the defendant’s regular business operations, the skill required in the particular occupation, the duration of the relationship of the parties, and the duration of the plaintiff’s employment.” (<i>Id.</i> at 311-312.) “[T]he individual</p> |
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|  |  | <p>factors cannot be applied mechanically as separate tests; they are intertwined and their weight depends often on particular combinations.” (<i>Id.</i> at 312.) The most important factor is “the defendant's right to control the means and manner of the workers’ performance.” (<i>Id.</i>)</p> <p>“[A] person can be a joint employer without exercising direct control over the employee.” (<i>Medina v. Equilon Enters., LLC</i> (2021) 68 Cal. App. 5th 868, 879.) “If the putative joint employer instead exercises enough control over the intermediary entity to indirectly dictate the wages, hours, or working conditions of the employee, that is a sufficient showing of joint employment.” (<i>Id.</i>)</p> <p>The court finds that documents in Plaintiff’s employment records may evidence the existence of an employment relationship between Plaintiff and UA POC. Further, documents concerning UA POC’s employment and compensation policies may lead to evidence of control by UA POC over the policies that affected Plaintiff’s wages, hours, and/or working conditions. Accordingly, the court grants the Motion to Compel Further Responses from UA POC as to RFP Nos. 1-6, which are narrowed in scope as follows:</p> <ul style="list-style-type: none"> <li>• RFP No. 1: PLAINTIFF’S employment records, including but not limited to his personnel file, time and payroll records, including any audit reports, wage statements, acknowledgements, agreements, job descriptions, work schedules, training records, expense reports, complaints, performance reviews, correspondence (i.e., letters, emails, text messages, etc.), business device records, workers compensation records, unemployment documents, and termination documents.</li> <li>• RFP No. 2: DEFENDANT’S compensation plans, including but not limited to commission and bonus plans, including ESI, that were applicable to NON-EXEMPT EMPLOYEES during the PAGA PERIOD.</li> <li>• RFP No. 3: DEFENDANT’S personnel manuals, human resource booklets, and employee handbooks, including ESI, that RELATE TO DEFENDANT’S employment POLICIES that were applicable to NON-EXEMPT EMPLOYEES during the PAGA PERIOD.</li> <li>• RFP No. 4: DEFENDANT’S timekeeping POLICIES, including ESI, applicable to NON-EXEMPT EMPLOYEES during the PAGA PERIOD.</li> <li>• RFP No. 5: DEFENDANT’S compensation POLICIES, including ESI, applicable to NON-EXEMPT EMPLOYEES during the PAGA PERIOD.</li> </ul> |
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- RFP No. 6: DEFENDANT’S payroll POLICIES, including ESI, applicable to NON-EXEMPT EMPLOYEES during the PAGA PERIOD.

Even if UA POC maintains that it was not Plaintiff’s employer, UA POC must still provide a code-compliant, substantive response to RFP Nos. 1-6. UA POC’s objection on the grounds that it was not Plaintiff’s employer does not permit UA POC to refuse to respond to the subject document requests. UA POC is still a party to this action and must comply with its discovery obligations.

If UA POC contends that it does not have possession, custody or control of responsive documents, it must still “affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand.” (CCP § 2031.230.) “This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party.” (*Id.*) “The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (*Id.*) Subject to the above conditions, the court grants the Motion as to RFP Nos. 1-6.

The court finds that a request for further responses to RFP Nos. 7-9, which seek all time records, payroll records and wage statements for all of UA POC’s employees during the PAGA Period, is premature prior to a showing that UA POC is Plaintiff’s employer. These other employee records are unrelated to whether there was an employment relationship between Plaintiff and UA POC. Thus, the Motion is denied without prejudice as to these document requests.

The court DENIES Plaintiff’s request for monetary sanctions, and DENIES UA POC’s request for monetary sanctions, as each party acted with substantial justification in bringing and opposing this Motion, respectively.

**MOTION 2: Plaintiff’s Motion to Compel Further Responses to SROG, Set One, from UA POC**

Plaintiff’s Motion to Compel Further Responses to Special Interrogatory (“SROG”), Set One, from UA POC is **DENIED WITHOUT PREJUDICE**.

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|  | <p>The court <b>OVERRULES</b> UA POC’s objections to Plaintiffs’ counsel, Hali M. Anderson’s declaration.</p> <p>In this second motion, Plaintiff seeks further responses to the following SROGs:</p> <ul style="list-style-type: none"><li>• SROG No. 1: Please <b>IDENTIFY</b> all <b>NON-EXEMPT EMPLOYEES</b> who were employed by <b>UNSTOPPABLE AUTOMOTIVE POC</b> during the <b>PAGA PERIOD</b>.</li><li>• SROG No. 2: Please <b>IDENTIFY</b> any other litigation filed against <b>UNSTOPPABLE AUTOMOTIVE POC</b> within the five years preceding the date of the filing of the complaint in this lawsuit which alleges any of the same claims being alleged in this lawsuit.</li></ul> <p>Neither of these SROGs are likely to lead to the discovery of admissible information regarding the employment relationship between Plaintiff and UA POC. These broad discovery requests regarding other employees and other litigation are premature prior to a showing that UA POC is Plaintiff’s employer. Plaintiff has not shown good cause for further responses to these SROGs. Accordingly, the court denies Plaintiff’s motion to compel further responses to these SROGs.</p> <p>The court <b>DENIES</b> Plaintiff’s request for monetary sanctions, and <b>DENIES</b> UA POC’s request for monetary sanctions, as each party acted with substantial justification in bringing and opposing this Motion, respectively.</p> <p><b><u>MOTION 3: Plaintiff’s Motion to Compel Further Responses to RFP, Set One, from UA VMV</u></b></p> <p>Plaintiff’s Motion to Compel Further Responses to RFP Set One from Defendant Unstoppable Automotive VMV, LLC (“UA VMV”) <b>GRANTED IN PART</b> as to RFP Nos. 1-6 and <b>DENIED WITHOUT PREJUDICE IN PART</b> as to RFP Nos. 7-9. IT IS ORDERED THAT within thirty (30) days of this ruling, UA VMV shall provide to Plaintiff complete, code-compliant further responses to Plaintiff’s RFP Nos. 1-6 (as modified in the ruling above as to Motion 1), provide a privilege log to Plaintiff for any documents withheld on the basis of privilege, and produce all non-privileged, responsive documents to Plaintiff.</p> <p>The court <b>OVERRULES</b> UA VMV’s objections to Plaintiffs’ counsel, Hali M. Anderson’s declaration.</p> |
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|    |                                                 | <p>Like Plaintiff and UA POC, Plaintiff and UA VMV dispute whether UA VMV employed Plaintiff. As the arguments and analysis for this Motion are the same as Motion 1, the court reaches the same conclusion. Plaintiff is entitled to further responses and responsive documents from UA VMV as to RFP Nos. 1-6 (as narrowed by the court above) as they are relevant to the question of the employment relationship between the parties. However, the Motion is denied without prejudice as to RFP Nos. 7-9 as these requests are premature.</p> <p>The court DENIES Plaintiff's request for monetary sanctions, and DENIES UA VMV's request for monetary sanctions, as each party acted with substantial justification in bringing and opposing this Motion, respectively.</p> <p><b><u>MOTION 4: Plaintiff's Motion to Compel Further Responses to SROG, Set One, from UA VMV</u></b></p> <p>Plaintiff's Motion to Compel Further Responses to SROG, Set One, from UA VMV is <b>DENIED WITHOUT PREJUDICE</b>.</p> <p>The court OVERRULES UA POC's objections to Plaintiffs' counsel, Hali M. Anderson's declaration.</p> <p>As with Motion 2 concerning the same SROGs, the court finds that there is no good cause for further responses from UA VMV to SROG Nos. 1 and 2. The court finds that the request for further responses to these SROGs is premature and denies this Motion.</p> <p>The court DENIES Plaintiff's request for monetary sanctions, and DENIES UA POC's request for monetary sanctions, as each party acted with substantial justification in bringing and opposing this Motion, respectively.</p> <p>Plaintiff is ordered to give notice of this ruling to Defendants.</p> |
| 13 | 30-2020-01174005<br>Utzman vs. County of Orange | <p><b><u>ILLUMINATION FOUNDATION'S MOTIONS FOR SUMMARY JUDGEMENT AND ADJUDICATION</u></b></p> <p>Defendant Illumination Foundation's ("IF") Motion for Summary Judgment is <b>DENIED</b>. IF's alternative Motion for Summary Adjudication is <b>GRANTED</b> as to Issue No. 10 and <b>DENIED</b> as to Issue Nos. 1-9, and 11-12.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |